

24TRCV03981 24TRCV03981

County: los-angeles

Division: Civil Law and Motion

Department: NWI

Hearing date: 2026-06-23

Motion: DEFENDANT NORMANDIE/WILSHIRE RETIRMEENT HOTEL LLC dba CALIFORNIA HEALTHCARE AND REHABILITATION CENTER'S DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT WITH MOTION TO STRIKE

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Case Number: 24TRCV03981 Hearing Date: June 23, 2026 Dept: NWI

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

COUNTY

OF LOS ANGELES

SUSAN CHRISTINE DE LARA, an individual,

Plaintiff,

vs.

PHILIP

BRUCE DE LARA, an individual; NORMANDIE/WILSHIRE RETIREMENT HOTEL LLC dba

CALIFORNIA HEALTHCARE AND REHABILITATION CENTER, a California Limited

Liability Corporation; and DOES 1 to 100, inclusive,

Defendants.

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CASE

NO: 24TRCV03981

[TENTATIVE]

ORDER RE: DEFENDANT NORMANDIE/WILSHIRE

RETIRMEENT HOTEL LLC dba CALIFORNIA HEALTHCARE AND REHABILITATION CENTER'S DEMURRER

TO PLAINTIFF'S FIRST AMENDED COMPLAINT WITH MOTION TO STRIKE

Dept.

I

DATE:

JUNE 23, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: NOVEMBER 25, 2024

TRIAL

DATE: APRIL 12, 2027

I.

BACKGROUND

On November 25, 2024, Plaintiff Susan Christine de

Lara ("Plaintiff") filed a complaint against Philip Bruce de Lara ("Philip"),

Normandie/Wilshire Retirement Hotel LLC dba California Healthcare and

Rehabilitation Center ("California Healthcare"), and Does 1 to 100 alleging

eight causes of action: (1) false imprisonment; (2) fraud; (3) elder abuse

neglect; (4) financial elder abuse; (5) intentional infliction of emotional

distress; (6) conspiracy to commit physical and financial elder abuse; (7)

aiding and abetting financial elder abuse; and (8) breach of fiduciary duty.

On March 6, 2026, Lisa Irwin, as

personal representative of the estate of Plaintiff, filed a first amended

complaint (“FAC”) against California Healthcare and Does 1 to 100 alleging five

causes of action: (1) elder abuse; (2) financial elder abuse; (3) false

imprisonment; (4) fraud – concealment; and (5) medical negligence.

On May 8, 2026, California

Healthcare (hereinafter “Defendant”) filed the instant demurrer to and motion

to strike portions of Plaintiff’s FAC.

On June 12, 2026, Plaintiff filed

her opposition.

On June 16, 2026, Defendant filed

its reply.

II.

LEGAL

STANDARDS

Demurrer

A

demurrer is a pleading that may be used to test the legal sufficiency of the

factual allegations in a complaint. (Cal. Code of Civ. Proc. § 430.10.) There are two types of demurrers: general demurrers and special demurrers. (See *McKenney v. Purepac Pharmaceutical Co.* (2008) 167 Cal.App.4th 72, 77.)

General

demurrers can be used to attack pleadings for failure to state facts sufficient to constitute a cause of action or for lack of subject matter jurisdiction.

(CCP § 430.10(e); *McKenney*, supra, 167 Cal.App.4th at 77.) Such

demurrers can be used only to challenge defects that appear on the face of the pleading or from matters outside the pleading that are judicially noticeable;

evidence or extrinsic matters are not considered. (CCP §§ 430.30 and 430.70; *Blank*

v. Kirwan (1985) 39 Cal.3d 311, 318; *Donabedian v. Mercury Ins. Co.*

(2004) 116 Cal.App.4th 968, 994.) To test the sufficiency of the cause of

action, the Court admits “all material facts properly pleaded” and “matters

which may be judicially noticed,” but does not consider contentions,

deductions, or conclusions of fact or law. [Citation].” (*Blank*, supra, 39 Cal.3d at 318.) The Court gives

these facts “a reasonable interpretation, reading it as a whole and its parts

in their context.” (*Ibid.*) At the pleading stage, a plaintiff need only

allege ultimate facts sufficient to apprise the defendant of the factual basis

for the claim against him. (*Semole v. Sansoucie* (1972) 28 Cal.

App. 3d 714, 721.) The face of the complaint includes exhibits attached to the

complaint. (Frantz v. Blackwell (1987) 189 Cal.App.3d 91, 94.) "If

facts appearing in the exhibits contradict those alleged, the facts in the

exhibits take precedence." (Holland v. Morse Diesel Intern., Inc. (2001)

86 Cal.App.4th 1443, 1447.)

CCP

§ 430.41 requires that "[b]efore filing a demurrer pursuant to this chapter,

the demurring party shall meet and confer in person, by telephone, or by video

conference with the party who filed the pleading that is subject to demurrer

for the purpose of determining whether an agreement can be reached that would

resolve the objections to be raised in the demurrer." (CCP § 430.41(a).)

The parties are to meet and confer at least five days before the date the

responsive pleading is due. (CCP § 430.41(a)(2).) Thereafter, the demurring

party shall file and serve a declaration detailing their meet and confer

efforts. (CCP § 430.41(a)(3).)

When

a demurrer is sustained, the Court determines whether there is a reasonable

possibility that the defect can be cured by amendment. (Blank, supra,

39 Cal.3d 311, 318.) When a plaintiff "has pleaded the general set of facts

upon which his cause of action is based," the court should give the plaintiff

an opportunity to amend his complaint, since plaintiff should not "be deprived

of his right to maintain his action on the ground that his pleadings were

defective for lack of particulars." (Reed v. Norman (1957) 152

Cal.App.2d 892, 900.) Generally, the court will allow leave to amend on at

least the first try, unless there is absolutely no possibility of overcoming

the issue. (See Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217,

1227 ["Denial of leave to amend constitutes an abuse of discretion unless the

complaint shows on its face it is incapable of amendment. (Citation.)

Liberality in permitting amendment is the rule, if a fair opportunity to

correct any defect has not been given."].)

Motion to Strike

The court may,

upon a motion, or at any time in its discretion, and upon terms it deems

proper, strike any irrelevant, false, or improper matter inserted in any

pleading. (Cal. Code of Civ. Proc. § 436(a).) The court may also strike all or

any part of any pleading not drawn or filed in conformity with the laws of this

state, a court rule, or an order of the court. (Id. at (b).) The grounds

for a motion to strike are that the pleading has irrelevant, false or improper

matter, or has not been drawn or filed in conformity with laws. (Ibid.)

The grounds for moving to strike must appear on the face of the pleading or by

way of judicial notice. (CCP § 437.)

Leave to amend must be

allowed where there is a reasonable possibility of successful amendment. (Vaccaro

v. Kaiman (1998) 63 Cal.App.4th 761, 768 [“When the defect which justifies

striking a complaint is capable of cure, the court should allow leave to

amend.”].) The burden is on the complainant to show the Court that a pleading

can be amended successfully. (Blank, supra, 39 Cal.3d 311, 318.)

Before filing a motion to

strike, the moving party shall meet and confer in person, by telephone, or by

video conference with the party who filed the pleading that is subject to the

motion to strike. (CCP § 435.5(a).)

III.

DISCUSSION

Meet and Confer

Defense

counsel declares that she “met and conferred with Plaintiff’s counsel by e-mail

and telephone over several months since the filing of the Original Complaint

and the amended Complaint regarding the deficiencies . . .” (Khonsari Decl. at

¶ 2.) The parties were unable to reach an agreement. (Id. at ¶ 3.)

Accordingly, the Court finds that Defendant satisfies the meet and confer

requirements of CCP §§ 430.41(a) and 435.5(a).

Demurrer

Defendant demurs

to Plaintiff's first, second, third, and fourth causes of action for elder abuse neglect, financial elder abuse, false imprisonment, and fraud, respectively, on the grounds that Plaintiff fails to state facts sufficient to constitute each cause of action. (See Demurrer at p. 3.)

First Cause of

Action – Elder Abuse/Neglect

To successfully

plead a cause of action for elder abuse/neglect, a plaintiff must allege ultimate facts showing that (1) defendant had a responsibility for meeting the basic needs of the elder or dependent adult, such as nutrition, hydration, or medical care; (2) defendant knew of the conditions that made the elder or dependent adult unable to provide for his or her own basic needs; (3) defendant denied or withheld goods or services necessary to meet the elder or dependent adult's basic needs, either (a) with knowledge that injury was substantially certain, or (b) with conscious disregard of the high probability of such injury; and (4) the neglect caused the elder or dependent adult to suffer physical harm, pain or mental suffering. (Carter v. Prime Healthcare Paradise Valley LLC (2011) 198 Cal.App.4th 396, 307.) "[T]he facts

constituting the neglect and establishing the causal link between the neglect and injury 'must be pleaded with particularity,' in accordance with the pleading rules governing statutory claims." (Ibid.) "In order to obtain the [Elder Abuse] Act's heightened remedies, a plaintiff must allege conduct essentially equivalent to conduct that would support recovery of punitive damages." (Covenant Care, Inc. v. Superior Court (2004) 32 Cal.4th 771, 789.) The Elder Abuse Act applies to defendants having had a caretaking or custodial relationship with an elder or dependent adult, including health care providers, administrators or employees of health facilities, persons providing care or services, members of support and maintenance staff, nursing home, and clinics. (Winn v. Pioneer Medical Group, Inc. (2016) 63 Cal.4th 148, 163-165.)

Here, Plaintiff alleges that this action "aris[es] from the prolonged wrongful confinement, reckless neglect, financial exploitation, and concealment of rights of [Plaintiff], an elder, while she resided at [Defendant's facility], a licensed skilled nursing facility in Los Angeles County." (FAC at ¶ 1.) "During her residency, [Plaintiff] was physically bedridden, initially incapacitated following emergency brain surgery, and wholly dependent upon Defendant Facility for mobility, medical care, and discharge planning." (Id. at ¶ 2.)

“Defendant Facility exercised prolonged custodial control over [Plaintiff] without securing lawful surrogate authority, failed to restore her autonomy upon regained capacity, maintained unnecessary invasive medical interventions, and retained substantial payments through high-acuity classification and medically unnecessary procedures.” (Id. at ¶ 3.) “As a result, [Plaintiff] suffered prolonged loss of liberty, permanent vocal injury, physical deterioration, psychological trauma, and substantial financial depletion.” (Id. at ¶ 4.) Plaintiff further alleges that “[a]t the time of her admission [to Defendant Facility], [Plaintiff] lacked capacity to make medical decisions due to the recent surgery and related medical condition.” (Id. at ¶ 20.) “At no time prior to losing capacity did [Plaintiff] execute a durable power of attorney, advance health care directive, or other document appointing an agent to make medical or financial decisions on her behalf, nor was a conservator of the person or estate ever appointed for [Plaintiff].” (Id. at ¶ 21.) “Defendant Facility did not obtain documentation establishing the lawful authority of any individual to make medical, placement, or financial decisions for [Plaintiff].” (FAC at ¶ 22.) “Despite the absence of lawful authority, Defendant Facility admitted [Plaintiff] and assumed custodial control over her person, medical treatment, housing, and billing.” (Id. at ¶ 23.) “At no time after [Plaintiff]’s admission did Defendant Facility obtain

lawful authority to make medical, custodial, or financial decisions on her behalf. No valid power of attorney existed, no conservator was appointed, and Defendant Facility failed to initiate or facilitate any lawful surrogate decision-making process. Despite the absence of legal authority, Defendant Facility nevertheless assumed and exercised control over [Plaintiff]'s medical treatment, institutional placement, and financial charges." (Id. at ¶ 24.)

Additionally, Plaintiff alleges that

"[Plaintiff] was fitted with a tracheostomy tube following her surgery." (FAC at ¶ 34.) "The tracheostomy tube remained in place for an extended period . . .

After her condition stabilized, [Plaintiff] requested removal of the tracheostomy tube . . . Defendant Facility did not timely remove the

tracheostomy tube." (Id. at ¶¶ 35-37.) "The prolonged use of the

tracheostomy tube caused lasting physical injury, including vocal impairment, difficulty

swallowing, and nerve-related complications." (Id. at ¶ 38.) "Even after

removal of the tracheostomy tube, [Plaintiff's] voice never returned to normal,

and she experienced chronic difficulty speaking without choking until her

death." (Id. at ¶ 39.) "Defendant Facility failed to provide adequate

rehabilitative services aimed at restoring [Plaintiff's] strength, mobility,

and independence." (Id. at ¶ 40.) "[Plaintiff] experienced muscle

atrophy and significant loss of physical function during her prolonged confinement.” (Id. at ¶ 41.) “During her residency at Defendant Facility, [Plaintiff] was subjected to repeated suctioning through her tracheostomy tube. Suctioning is an invasive and painful procedure that is medically appropriate only when necessary to clear airway secretions.” (FAC at ¶ 42.) “[Plaintiff] reported to others that a member of the facility staff would threaten to perform suctioning on her if she complained or spoke up, telling her to ‘shut up’ or she would be suctioned. [Plaintiff] further reported that on some occasions suctioning was performed despite the absence of any medical need, causing her significant pain, distress, and fear.” (Id. at ¶ 43.)

Based on the foregoing allegations,

Plaintiff pleads that Defendant, as a skilled nursing facility, had a responsibility for meeting Plaintiff’s basic needs; that Defendant knew of Plaintiff’s emergency brain surgery and subsequent incapacitation that made her unable to provide for her own basic needs; that Defendant denied or withheld the services necessary to meet her needs by failing to remove her tracheostomy tube in a timely manner and unnecessarily “suctioning,” with knowledge that injury was substantially certain or with conscious disregard of the high probability of such injury; and that, as a result, Plaintiff suffered permanent

injury to her throat and mental suffering. (See discussion *supra* at

6:7-8:4; see also *Carter*, *supra*, 198 Cal.App.4th at 307.)

In its demurrer, Defendant argues

that “[n]ere conclusory statements are insufficient to support a cause of

action of elder abuse. Furthermore, nothing alleged shows that Defendant acted

in conscious disregard or with knowledge that injury was substantially certain,

as required by *Carter*.” (Demurrer at 12:22-27.) The Court disagrees.

Here, Plaintiff alleged with particularity that Defendant threatened to perform

“suctioning” if she complained or “spoke up,” telling her to “shut up” when she

requested adequate care. (See FAC at ¶¶ 42-43.) Therefore, Plaintiff

provides more than “mere conclusory” statements regarding the underlying

conduct.

However, Defendant also argues that

Plaintiff fails to allege “facts showing that an officer, director, or managing

agent of Defendant was involved in the abuse, authorized the abuse, ratified

the abuse, or hired the person who did the abuse with advance knowledge of the

persons [sic] unfitness and hired him or her with a conscious disregard of the

rights and safety of others.” (Demurrer at 13:16-20 [citing Cal. Wel. &

Ins. Code § 15657(c) and Civ. Code § 3294].) Civ. Code § 3294(b), incorporated

by reference into the Elder Abuse Act, provides that an employer shall not be

liable for punitive damages based upon the acts of an employee unless the employer had advance knowledge of the unfitness of the employee and employed that employee with a conscious disregard of the rights or safety of others, or authorized or ratified the wrongful conduct, or was personally guilty of oppression, fraud, or malice. (See Wel. & Ins. Code § 15657.)

California courts have held that a plaintiff must allege specific facts – not mere conclusions – demonstrating that an identified officer, director, or managing agent knew of the abusive or neglectful conditions and either authorized, ratified, or personally engaged in the reckless, oppressive, fraudulent, or malicious conduct. (Dougherty v. Roseville Heritage Partners (2020) 47 Cal.App.5th 93.)

Here, Plaintiff provides conclusory allegations that the unnamed Administrator and Director of Nursing ratified the alleged conduct; however, Plaintiff fails to plead specific facts giving rise to these conclusions as required by Dougherty. (See FAC at ¶¶ 127-136.)

Based on the foregoing, Defendant's demurrer to Plaintiff's first cause of action for elder abuse is sustained with leave to amend.

Second Cause of

Action – Financial Elder Abuse

Next, to

successfully plead a cause of action for financial elder abuse, a plaintiff

must allege ultimate facts showing that a caretaker took, secreted,

appropriated, obtained, or retained real or personal property of an elder for a

wrongful use, or with intent to defraud, or assisted with those. (Knox v.

Dean (2012) 205 Cal.App.4th 417, 423.) “[B]ad faith or intent to defraud is

no longer required in elder or dependent adult abuse cases . . . But they still

must allege at least a ‘wrongful use’ of property.” (Stebly v. Litton Loan

Servicing, LLP (2011) 202 Cal.App.4th 522, 527-528.)

See discussion of Plaintiff’s

complaint supra at 6:7-8:4. Additionally, Plaintiff pleads that

“[Plaintiff] owned and was entitled to receive: Social Security benefits;

Supplemental Security Income; Medicare benefits; Medi-Cal benefits; Private

funds and income; any other financial resources used to pay for her care.” (FAC

at ¶ 139.) “Defendant Facility obtained and retained payments for [Plaintiff’s]

care, including monthly charges approximately \$20,000 per month under a

Sub-Acute or high acuity classification.” (Id. at ¶ 141.) “Defendant

Facility accepted and retained such payments despite the absence of . . . A

valid power of attorney . . . A court-appointed conservator . . . A lawfully

designated financial representative . . . [Plaintiff's] informed and voluntary consent during periods when she had regained capacity." (Id. at ¶ 142.) "Defendant Facility exercised control over billing, classification status, and care-level designation that directly affected the amount of money charged and collected." (Id. at ¶ 143.) "Accepting and retaining payment for care classifications that were not medically justified constitutes taking property for wrongful use." (Id. at ¶ 149.) Plaintiff further alleges that the unjustified medical care included daily blood glucose testing, despite no medical history of diabetes. (Id. at ¶¶ 150-154).

Based on the foregoing, Plaintiff

successfully pleads a cause of action for financial elder abuse. While

Defendant argues that Plaintiff does not plead the claim with the requisite

specificity (see Demurrer at 14:3-20), Plaintiff indeed pleads with

specificity that Defendant fraudulently retained payment for care

classifications that were not medically justified, including daily blood

glucose testing, despite the absence of a valid power of attorney, a

court-appointed conservator, or a lawfully designated financial representative.

(See discussion *supra*.)

Based on the foregoing, Defendant's

demurrer to Plaintiff's second cause of action for financial elder abuse is

overruled.

False Imprisonment

Next, to successfully plead a cause

of action for false imprisonment, a plaintiff must allege ultimate facts

showing that a defendant (1) caused the nonconsensual, intentional confinement

of a person; (2) without lawful privilege; (3) for an appreciable period. (Lyons

v. Fire Ins. Exch. (2008) 161 Cal.App.4th 880, 888; Easton v. Sutter

Coast Hosp. (2000) 80 Cal.App.4th 485, 496.)

See discussion of Plaintiff's

complaint supra at 6:7-8:4. Additionally, Plaintiff pleads that "Defendant

did not obtain documentation establishing that any individual possessed lawful

authority to consent to [Plaintiff's] placement." (FAC at ¶ 167.) "Defendant

Facility did not document compliance with statutory procedures required when a

resident lacks capacity and has no lawful decisionmaker." (Id. at ¶

169.) "Despite the absence of lawful authority, Defendant Facility exercised

custodial control over [Plaintiff's] person, housing, medical treatment, and

discharge planning." (Id. at ¶ 170.) "Defendant Facility maintained

exclusive control over [Plaintiff's] ability to leave the premises, as she was

physically unable to ambulate or transfer independently. Without the assistance

and cooperation of Defendant Facility, [Plaintiff] had no practical ability to

leave the facility or return home.” (Id. at ¶ 171.) “By approximately early 2022, [Plaintiff] began expressing her desire to leave Defendant Facility and return home.” (Id. at ¶ 174.) “[Plaintiff] repeatedly requested discharge.” (FAC at ¶ 175.) “[Plaintiff]’s requests for discharge continued for approximately one year.” (Id. at ¶ 176.) “Despite [Plaintiff’s] repeated requests and improved condition, Defendant Facility continued to retain her as a resident.” (Id. at ¶ 181.)

Notably, CCP § 340(c) provides a statute of limitations of one year for a claim of false imprisonment. (See CCP § 340(c).) Defendant argues that, based on Plaintiff’s allegations, Plaintiff “knew or should have known of her claim for false imprisonment . . . no later than March/April 2022 when she started to feel better . . . The Complaint was filed on November 25, 2024, more than one year after Plaintiff was aware of the facts giving rise to the claim for false imprisonment.” (Demurrer at 10:14-19.)

In opposition, Plaintiff argues that “[b]y April 2022, [Plaintiff] explicitly regained capacity and spent an entire year begging to leave,” inferring that Plaintiff was discharged in the spring of 2023. (See Opposition at 13:21-14:3.) Still, this would support the conclusion that Plaintiff’s claim must have been filed by spring of 2024 to comply with CCP § 340(c). Plaintiff states that the “date of discovery of false imprisonment is a factual issue” (see

Opposition at 14:18-22). However,

Plaintiff's complaint plainly demonstrates, on its face, that Plaintiff, by

begging to leave, knew of her false imprisonment by spring 2023 at the latest. However,

the date of discharge is not clearly stated.

Accordingly, Plaintiff's claim for false imprisonment may be

time-barred.

Based on the foregoing, Defendant's

demurrer to Plaintiff's third cause of action for false imprisonment is

sustained with leave to amend.

Fraudulent

Inducement Through Concealment

Finally, to successfully plead a

cause of action for fraudulent inducement through concealment, a plaintiff must

plead facts showing that (1) the defendant concealed or suppressed a material

fact; (2) the defendant was under a duty to disclose this fact to the

plaintiff; (3) the defendant intentionally concealed or suppressed the fact

with intent to defraud the plaintiff; (4) plaintiff was unaware of the fact and

would not have acted in the same way had they known the concealed or suppressed

fact; (5) the concealment caused the plaintiff's alleged harm; and (6) the

plaintiff suffered damages as a result. (Blickman Turkus, LP v. MF Downtown

Sunnyvale, LLC (2008) 162 Cal.App.4th 858, 868; Lovejoy v. AT&T

Corp. (2001) 92 Cal.App.4th 85, 96.) “[M]ere conclusory allegations that

the omissions were intentional and for the purpose of defrauding and deceiving

plaintiffs and bringing about the purchase . . . and that plaintiffs relied on

the omissions in making such purchase are insufficient [to show fraud by

concealment].” (Linear Technology Corp. v. Applied Materials, Inc.

(2007) 152 Cal.App.4th 115, 132.) “In transactions which do not involve a

fiduciary or confidential relations, a duty supporting a cause of action for

non-disclosure of material facts may arise in at least three instances: (1) the

defendant makes representations but does not disclose facts which materially

qualify the facts disclosed, or which render his disclosure likely to mislead;

(2) the facts are known or accessible only to defendant, and defendant knows

they are not known or reasonably discovered by the plaintiff; (3) the defendant

actively conceals discovery from the plaintiff.” (Ibid.)

See discussion of Plaintiff’s

complaint supra. Plaintiff further alleges that “[b]y virtue of its

custodial control, Defendant Facility owed [Plaintiff] a duty to disclose

material facts affecting . . . Her legal authority status . . . Who could

lawfully make decisions on her behalf . . . Her right to consent to or refuse

treatment . . . Her right to participate in care planning . . . Her right to

discharge or discharge planning . . . The medical necessity of invasive devices

and procedures . . . [and c]are-level classification and associated financial

consequences.” (FAC at ¶ 192.) “Defendant Facility possessed superior knowledge

regarding [Plaintiff’s] authority status, statutory obligations applicable to

incapacitated residents, medical condition, classification level, billing

implications, and discharge rights.” (Id. at ¶ 193.) “A confidential and

fiduciary-like relationship existed between [Plaintiff] and Defendant Facility

due to Defendant’s custodial control and [Plaintiff]’s vulnerability.” (Id. at

¶ 195.) “At no time during [Plaintiff’s] residency did Defendant Facility

possess a legally valid power of attorney, court-appointed conservator, or

other documented lawful authority authorizing long-term placement and medical

decision-making on her behalf.” (Id. at ¶ 196.) “Defendant Facility

failed to disclose that no such lawful authority existed.” (Id. at ¶

197.) “Defendant Facility concealed these material facts and rights in order to

. . . Maintain custodial control over [Plaintiff] . . . [and] Continue billing

at elevated rates . . .” (Id. at ¶ 210.) “[Plaintiff] reasonably relied

upon Defendant Facility, as her custodial healthcare provider, to disclose

material information necessary for her to make informed decisions regarding her

liberty, treatment, and finances.” (Id. at ¶ 212.) “As ad direct and

proximate result of Defendant Facility’s concealment . . . [Plaintiff] endured

unnecessary invasive procedures . . . [and] suffered permanent vocal injury . .

.” (FAC at ¶ 216.)

Based on the foregoing, Plaintiff

successfully pleads a cause of action for fraudulent inducement through

concealment. While Defendant argues that Plaintiff failed to plead fraud with

the requisite specificity (see Demurrer at 11:23-12:1), specifically,

that Plaintiff fails to plead “how or where or to whom or by what means each

representation was made,” such allegations are not required when pleading concealment,

i.e., that Defendant failed to make specific disclosures to Plaintiff.

Based on the foregoing, Defendant’s

demurrer to Plaintiff’s fourth cause of action for fraud is overruled.

Uncertainty

Defendant also

demurs to the entire complaint on grounds of uncertainty. (See 14:22-15:4.)

However, Defendant fails to explain its reasoning and, furthermore, the Court

finds that the pleading is drafted in a manner where Defendant can reasonably

determine what issues must be admitted or denied. (See *Khoury v. Mayl’s of*

California Inc. (1993) 14 Cal.App.4th 612, 616.) Therefore, the Court

disregards this argument.

Motion to Strike

Next, Defendant

moves to strike language supporting punitive damages, attorney's fees, and

"general/compensatory damages." (Motion at 2:6-9.) Defendant argues that

Plaintiff has not alleged facts showing that Defendant's actions were

"fraudulent, willful, malicious and carried out with a reckless disregard for

Plaintiff's rights and well-being entitling her to compensatory and punitive

damages." (Motion at 8:21-28.) However, as discussed supra, the Court

finds that Plaintiff successfully pled, with specificity, Defendant's conscious

disregard for Plaintiff's rights and wellbeing by threatening to "suction" her

if she did not "shut up," and for failure to obtain the proper legal authority

to continuously hold Plaintiff in its facility. Accordingly, the Court

disagrees on these grounds. Defendant's motion to strike general damages is

denied. Furthermore, Defendant's motion to strike language that Defendant acted

recklessly, deliberately, and with oppression, fraud, or malice is also denied.

(See Motion at 2:6-4:5.)

However, Defendant further argues

that "[t]o recover punitive damages [and attorney's fees], a plaintiff must

allege facts showing involvement in the wrongful conduct by an officer,

director or managing agent." (Motion at 11:16-28 [citing Civ. Code § 3294(b).])

As discussed supra, Plaintiff failed to allege, with the required

specificity, wrongful conduct or ratification by an officer, director, or managing agent. Based on these limited grounds, Defendant's motion to strike punitive damages and request for attorney's fees is granted with leave to amend.

Leave

to Amend

When a

demurrer is sustained, the Court determines whether there is a reasonable possibility that the defect can be cured by amendment. (Blank, supra, 39 Cal.3d 311, 318.) When a plaintiff "has pleaded the general set of facts upon which his cause of action is based," the court should give the plaintiff an opportunity to amend his complaint, since plaintiff should not "be deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars." (Reed, supra, 152 Cal.App.2d at 900.) Generally, the court will allow leave to amend on at least the first try, unless there is absolutely no possibility of overcoming the issue. (See Angie M., supra, 37 Cal.App.4th at 1227.)

Based on the foregoing, Plaintiff is

granted leave to amend her first cause of action for elder abuse and her third cause of action for false imprisonment. Plaintiff is also given leave to amend

her request for punitive damages and attorney's fees.

IV. CONCLUSION

Defendant's

demurrer to Plaintiff's first cause of action for elder abuse is SUSTAINED with

leave to amend.

Defendant's

demurrer to Plaintiff's second cause of action for financial elder abuse is

OVERRULED.

Defendant's

demurrer to Plaintiff's third cause of action for false imprisonment is

SUSTAINED with leave to amend.

Defendant's

demurrer to Plaintiff's fourth cause of action for fraudulent inducement

through concealment is OVERRULED.

Defendant's

demurrer to the entire complaint for uncertainty is OVERRULED.

Defendant's

motion to strike language from Plaintiff's complaint regarding Defendant's

conscious disregard for Plaintiff's rights, recklessness, malice, oppression,

or fraud is DENIED.

Defendant's

motion to strike general damages is DENIED.

Defendant's

motion to strike punitive damages and attorney's fees is SUSTAINED with leave
to amend.

Plaintiff

to file an amended complaint within 20 days of this order.

Moving

party to give notice.

Dated: June

____, 2026

Hon. Karen Moskowitz

Judge of the Superior

Court